



OREGON YOUTH AUTHORITY

Policy Statement

Part III – Youth Services (Community)



Subject:

Youth Foster Care Eligibility, Referral, Placement, and Safety

Section – Policy Number:

A: General Administration – 3.0

Supersedes:

III-A-3.0 (6/21)
III-A-3.0 (7/18)
III-A-3.0 (1/16)
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04/26/2026

Related Standards and References:

- [OAR 416-530](#) Adjudicated Youth Foster Care Certification
- [OYA policy](#): 0-2.3 Mandatory Reporting of Abuse
- III-A-4.0 Search of Youth and Areas; Processing of Contraband and Evidence in Community Placements
- III-D-1.3 JPPO Contact Standards
- OYA Foster Care Certifier Desk Manual (on the network)
- OYA form: [YA 5026](#) OYA Foster Youth Monthly Progress Report

Related Procedures:

- None

Policy Owner:

Foster Care Program Manager

Approved:


Joseph O'Leary, Director

I. PURPOSE:

This policy provides general standards for foster care referral and placement. The policy also establishes supervision standards for juvenile parole/probation officers (JPPOs), and foster care certifiers (certifiers).

II. POLICY DEFINITIONS:

Foster care certifier (certifier): The OYA staff member that is responsible for the recruitment, training, certification, support, and supervision of OYA foster homes.

- **Local certifier:** The certifier assigned to a specific field office(s) and region(s).
- **Placing certifier:** The certifier assigned to a specific foster home(s).

Foster home: A home in the community that is certified by OYA and maintained and lived in by a foster parent(s) who models pro-social behavior, engages in activities to promote youth reformation, provides supervision, support, food, a safe living environment, and clothing for youth in OYA custody.

Foster parent: A person certified by OYA who demonstrates special competence to supervise adjudicated youth with serious social or behavioral maladaptive characteristics in an adjudicated youth foster home setting.

Inquiry phone call: Phone calls made by a JPPO to a foster parent to help a JPPO become familiar with a home's structure, approach to working with youth, current milieu, community information, and other general information regarding the home. Referral and placement decisions are not part of inquiry phone calls.

Multidisciplinary Team (MDT): A team of individuals working collaboratively to develop and maintain a comprehensive individualized case plan that is culturally competent and gender-appropriate for each youth committed to the Oregon Youth Authority (OYA). The MDT is based on a core team membership consisting of the youth, OYA primary case manager, placement representative, QMHP (facility)/treatment provider (community), tribal representative (for youth enrolled in one of Oregon's federally recognized tribes) and the parents/guardians. Additional team members are identified by the core team based on the youth's Risk Needs Assessment, identified criminogenic needs and placement.

Wait list: A current list of youth eligible for foster care that are waiting to be placed in a foster home when the appropriate placement becomes available.

III. POLICY:

OYA's mission is to protect the public and reduce crime by holding youth accountable and providing opportunities for reformation in safe environments. OYA supports the use of foster care to provide a structured family living environment that addresses youth needs, provides accountability, promotes reformation and positive development, and mitigates community risk for youth who need out-of-home placement or transitional services.

OYA has identified diversity, equity, and inclusion as an agency priority and initiative with a goal to build a respectful, diverse, equitable, and inclusive environment for youth and staff that is free from harassment, discrimination, and bias. Data shows youth of color and LGBTQ+ youth are disproportionately represented in the juvenile justice system. While OYA is only one part of that system, it plays a critical role in addressing the historical and systemic inequities it perpetuates. OYA strives to have a continuum of diverse foster homes that reflects the diversity of OYA youth. OYA staff must ensure youth are referred and placed in OYA foster care in an unbiased and equitable manner.

Critical to the agency's mission is the continual assessment and evaluation of youth in foster care to ensure safety. These activities are essential to guarantee foster homes meet OYA standards and youth receive the level of care expected by the agency. An orderly, unbiased referral and placement process is also necessary to ensure eligible youth are properly matched with appropriate, diverse foster homes, when possible.

Certifiers must ensure OYA foster parents model appropriate pro-social behaviors to youth in their care. OYA's levels of foster care and foster parent monitoring requirements are delineated in [Oregon Administrative Rules](#).

IV. GENERAL STANDARDS:

A. Determining if a youth is appropriate for foster care

1. A youth's Multidisciplinary Team (MDT) must review the youth for foster care placement appropriateness and readiness. The local certifier must be included in the MDT meeting when a youth is being considered for foster care placement.

The MDT must consider the factors below when reviewing a youth for foster care.

- a) Behavioral and emotional stability as evidenced by the following:
 - (1) Absence of recent patterns of aggressive/assaultive or fire-setting behavior;
 - (2) Absence of active psychosis or other acute mental health symptoms, or current suicidal/self-harm behavior or ideation;
 - (3) Ability to demonstrate appropriate emotional regulation; and
 - (4) Ability to maintain positive relationships with adults and peers.
 - b) Readiness for engagement in community-based activities such as public school, work, higher education, day treatment or reformation opportunities.
2. Exceptions to these factors may be considered by the MDT on a case-by-case basis. The MDT must base the exception on available foster parents' skills, and ability to mitigate the youth's risk while addressing the youth's needs through services and support planning.

B. Referrals

1. A JPPO must determine potential foster care placements after receiving the MDT recommendation for foster care. The placement must be based on a review of the current Foster Care Openings List, discussion with the local or placing certifier, review of the Foster Home Directory, and any inquiry phone calls. Referral and placement decisions are not part of inquiry phone calls. The JPPO must consider the following when matching the youth's needs to a foster home:
 - a) How the youth's criminal history may impact the foster home;
 - b) The youth's response to interventions;

- c) The foster parent(s) skills to recognize and support the youth, including but not limited to the youth's culture, ethnicity, religious and spiritual practices, gender identity, sexual orientation, and emotional and behavioral needs;
 - d) Similarity between the foster parent(s) and youth's communities (e.g., ethnic, religious, spiritual, linguistic, LGBTQ+);
 - e) The current composition of the foster home; and
 - f) The geographic area of the foster home including the treatment and support resources available.
2. The JPPO must notify the local or placing certifier of each foster home referral inquiry. To assist in the referral process, the JPPO must provide the local certifier all relevant youth history and prognosis documents including, but not limited to, the following information:
- a) Updated case plan or most recent county reformation plan/history and background information;
 - b) Current service planning information from residential program (if applicable); and
 - c) Most recent assessment(s), psychological evaluation, and any relevant treatment history information (if applicable).
3. The local certifier must contact the JPPO within two business days after receiving the referral to confirm its receipt.
- The certifier and the JPPO must collaboratively evaluate the referral information to determine the most appropriate foster home(s) available that meet the youth's needs based on the foster home opening list. If there is no immediate or upcoming opening in the selected foster home, the JPPO may request the youth be placed on the wait list (see paragraph 6 below).
4. After the initial contact, the placing certifier must contact the JPPO at least once per week to update the JPPO on the referral status.
5. The placing certifier must notify foster homes identified as appropriate referral matches.
- a) The placing certifier must meet with the foster parents to share and discuss referral information.
 - b) If the foster parents agree the youth may be appropriate for the home, the placing certifier must notify the JPPO so the JPPO may contact the foster parents.

- c) The placing certifier must arrange a screening including the placing certifier, foster parents, youth, the JPPO and other people notably involved with the youth.
- d) The placing certifier and JPPO may arrange trial visits at the potential foster home.
- e) If the youth, foster parents, JPPO, and certifier agree to the placement, a placement timeline must be established.

6. Wait List

If there is no available foster care resource, the youth will be placed on a wait list.

- a) The wait list must be maintained by the certifiers.

JPPOs must place youth on the wait list through their local certifier.
- b) The certifier must make arrangements for the youth to be placed in a foster home as soon as an opening in an appropriate or selected home becomes available.
- c) The certifier must contact the referring JPPO at least monthly to update the JPPO on the youth's wait list status.
- d) The Foster Care Unit will continue to assess, identify, and develop additional foster care resources to meet the needs of youth on the wait list.

C. Placement

- 1. The JPPO and the certifier are responsible for arranging a youth's placement into a foster home. The JPPO must ensure the following youth information is provided to the foster parent prior to or on the placement date:
 - a) Face sheet, including current JJIS photo;
 - b) A completed Foster Care Youth Intake Checklist (YA 5018);
 - c) Case plan and other relevant case information;
 - d) At least a 30-day supply of current medications;
 - e) Treatment and service provider information;
 - f) Government-issued identification card (if available); and
 - g) Medical card.

2. The JPPO must ensure the youth's personal property does not exceed OYA's standard travel kit that includes two large duffle bags, one toiletry bag, and one large plastic tote.
 - a) Any exception to this standard must be approved by the youth's JPPO and the foster parent prior to placement.
 - b) The JPPO must search and inventory the youth's property upon placement. Any prohibited items must be removed.

D. Ongoing contact after placement

1. JPPO

- a) JPPOs and certifiers must continuously communicate about relevant foster home information and youth placed in the foster home.
- b) The JPPO must communicate with the foster parent(s) at least once per month in person, by e-mail, or phone to review the youth's progress. The JPPO must have contact with youth as outlined in OYA policy [III-D-1.3 \(JPPO Contact Standards\)](#). More frequent contact is advisable when a youth is presenting behavioral or emotional difficulties in the home.
- c) The JPPO is responsible for coordinating in-person or videoconference quarterly MDT meetings with the youth, foster parent(s), certifier, youth's parents (if applicable) and any other youth support considered appropriate to attend. These meetings must occur every 90 days as prescribed in OYA policy [I-A-11.0 Assessment, Multidisciplinary Team, and Case Planning](#).
- d) The JPPO must document the monthly communication and 90-day MDT meetings in the youth's JJIS notebook.
- e) Whenever possible, the JPPO must give reasonable advance notice to the foster parent(s) when the JPPO plans to discuss pertinent topics, issues, or decisions that may impact the home (e.g., cell phones, dating, unsupervised community time, transition planning) with the youth.

When advance notice is not possible, the JPPO must provide a synopsis of the discussion to the foster parent(s) within 24 hours after meeting with the youth.

- f) Whenever possible, the JPPO must notify the foster parent(s) within three to five business days in advance when the JPPO intends to meet the youth at the foster home. The advance notice will allow the foster parent(s) time to ensure the youth is in the home for the meeting.

2. Certifier

- a) The certifier must continuously communicate with JPPOs about relevant foster home information and youth placed in the foster home.
- b) Certifiers must distribute the OYA Foster Youth Monthly Progress Report to appropriate JPPOs every month.
- c) Certifiers must visit their assigned foster homes and make face-to-face contact with the foster parents at least once a month. Visits may be scheduled or unannounced.
- d) Certifiers must contact foster parents by phone at least once a week.
- e) Certifiers must document their weekly phone calls and monthly site visits and any other relevant information in the Foster Parent(s) JJIS Notebook.

3. Certifiers must ensure foster parents -

- a) Maintain ongoing communication with JPPOs and certifiers about relevant information regarding the foster home and youth placed in the foster home;
- b) Complete an OYA Foster Youth Monthly Progress Report for each youth placed in the foster home. Reports will be given to the certifier or sent directly to the youth's JPPO each month; and
- c) Provide timely incident reports to JPPOs and certifiers.

E. Safety standards

- 1. Staff must be aware of the below-listed issues and activities during each contact with the youth.
 - a) Safety issues: These include appropriate personal boundaries, threats of harm, home activities or recreation choices (e.g., movie rentals, videogames, computer use).
 - b) Supervision issues: These include issues related to proper foster parent supervision of the youth.
 - c) Reformation activities: These include youth's attendance to treatment services; visitation with the youth's family; and the foster parent's modeling of pro-social behavior.
- 2. Staff must be alert to any safety or health hazards present in the home that may pose a risk to the youth.

Staff must immediately notify the certifier of any safety or health risks seen in the foster home.

3. Certifiers must offer surveys to each youth in foster care every six months.
4. The Foster Care Unit must offer foster parents a foster parent satisfaction survey every six months.
5. Any allegation of abuse of a youth caused by a youth, member of the foster home, or foster parent may result in the immediate removal of one or all youth from the home.
 - a) Any suspected or actual abuse of a youth or other child under the age of 18 is subject to mandatory child abuse reporting. Staff must follow OYA policy 0-2.3 (Mandatory Reporting of Abuse) when reporting alleged child abuse.
 - b) Staff must report any suspected or actual abuse of a youth over the age of 18 to local law enforcement.

If the youth has a physical or developmental disability, staff must also call Oregon's abuse reporting hotline at 1-855-503-SAFE (7233).
 - c) The staff member who became aware of the suspected or actual youth abuse must immediately notify the JPPO, certifier, Foster Care Program manager, and field supervisor of the incident.
6. Any safety or health risks that place a youth in harm or danger as determined by OYA staff may result in the immediate removal of any or all youth from the foster home.

F. OYA Foster Care Certifier Desk Manual

Certifiers must refer to the OYA Foster Care Certifier Desk Manual for standards on foster care daily operations, documentation and certifier responsibilities.

G. Remedy of foster home complaints/safety and health risk reports

1. Situations that are determined by the Foster Care Program manager to be serious and threaten the safety, health, or reformation of youth must lead to the suspension or revocation of the Foster Care Certificate as described in [OAR 416-530-0090](#).
2. Staff must forward all complaints regarding foster parent supervision and care to the Foster Care Program manager for review.

3. The Foster Care Program manager must review complaints and may include the certifier in determining responses with foster parents.
4. Complaints determined a serious concern that involve a violation of [OAR 416-530](#) must be addressed with a formal letter of action documented by the certifier and approved by the Foster Care Program manager. The letter of action must include and describe the following:
 - a) The issue of concern;
 - b) The action the foster parent must take to remedy the issue;
 - c) The expected date the issue must be remedied; and
 - d) The outcome if the issue is not resolved.
5. OYA may suspend or revoke a foster parent's Foster Care Certificate according to [OAR 416-530-0090](#), after a consultation between the Foster Care Program manager and the assigned Oregon Department of Justice legal counsel.

V. LOCAL OPERATING PROTOCOL REQUIRED: NO